IN THE SUPREME COURT
OF THE VIRGIN ISLANDS
FILED
July 14, 2023 04:56 PM
SCT-Prom-2023-0003
VERONICA HANDY, ESQUIRE
CLERK OF THE COURT

IN THE SUPREME COURT OF THE VIRGIN ISLANDS

IN RE: **AMENDMENTS TO THE VIRGIN ISLANDS RULES OF CIVIL PROCEDURE, VIRGIN ISLANDS RULES OF CRIMINAL PROCEDURE, VIRGIN ISLANDS RULES OF EVIDENCE, THE VIRGIN ISLANDS RULES OF APPELLATE PROCEDURE, AND THE VIRGIN ISLANDS ELECTRONIC FILING RULES.**	**SCT-Prom-2023-0003**

NOTICE OF ENTRY OF JUDGMENT/ORDER

TO: **Justices of the Supreme Court**
Judges & Magistrate Judges of the Superior Court
Judges & Magistrate Judges of the District Court
Dwyer Arce, Esq., President, V.I. Bar Association
Hinda Carbon, Executive Director, V.I. Bar Association, ***for distribution to V.I. Bar members***
Regina D. Petersen, Administrator of Courts
Veronica J. Handy, Esq., Clerk of the Supreme Court
Tamara Charles, Clerk of the Superior Court
Glenda L. Lake, Esq., Clerk of the District Court
Supreme Court Law Clerks
Supreme Court Secretaries
Order Book
Westlaw
Lexis/Michie

Please take notice that on **July 14, 2023** a(n) **ORDER** dated **July 14, 2023**, was entered by the Clerk in the above-entitled matter.

Dated: **July 14, 2023**

VERONICA J. HANDY, ESQ
Clerk of the Court
By: Kobe Potter
Deputy Clerk II

IN THE SUPREME COURT
OF THE VIRGIN ISLANDS
FILED
July 14, 2023 04:49 PM
SCT-Prom-2023-0003
VERONICA HANDY, ESQUIRE
CLERK OF THE COURT

IN THE SUPREME COURT OF THE VIRGIN ISLANDS

IN RE: **AMENDMENTS TO THE VIRGIN ISLANDS RULES OF CIVIL PROCEDURE, VIRGIN ISLANDS RULES OF CRIMINAL PROCEDURE, VIRGIN ISLANDS RULES OF EVIDENCE, THE VIRGIN ISLANDS RULES OF APPELLATE PROCEDURE, AND THE VIRGIN ISLANDS ELECTRONIC FILING RULES.**	)	**PROMULGATION No. 2023-003**

ORDER OF THE COURT

On June 8, 2023, this Court received a Report of the Advisory Committee on Rules, which proposes to this Court several amendments to the Virgin Islands Rules of Civil Procedure, the Virgin Islands Rules of Criminal Procedure, the Virgin Islands Rules of Evidence, the Virgin Islands Rules of Appellate Procedure, and the Virgin Islands Electronic Filing Rules. Having reviewed the Report, this Court has determined that the amendments proposed by the Advisory Committee on Rules are warranted and will improve the administration of justice, and shall go into effect unless modified by public comment. Accordingly, it is hereby

ORDERED that Rule 4 of the Virgin Islands Rules of Civil Procedure **SHALL BE AMENDED** in the following instances:

1. In Rule 4(c)(1), by striking the word "4(m)" and replacing it with the word "4(n)"
2. In Rule 4(e)(4)(A), by striking the phrase "(d)(1) to (d)(3)" and replacing it with the phrase "(e)(1) to (e)(3)"
3. By striking Rule 4(m)(2) in its entirety and replacing it with the following new language:

Service Outside of the United States Virgin Islands. Service outside the

> Territory of the United States Virgin Islands must be proved as provided in 5 V.I.C. § 4911.

It is further

ORDERED that Rule 6(a) of the Virgin Islands Rules of Civil Procedure **SHALL BE AMENDED** by inserting language as follows:

> (A) the day set aside by statute for observing January 1 (New Year's Day) January 6 (Three King's Day); Third Monday in January (Martin Luther King, Jr.'s Birthday); Third Monday in February (Presidents Day); March 31 (Transfer Day); Holy Thursday; Good Friday; Easter Monday; Last Monday in May (Memorial Day); June 19 (Juneteenth National Independence Day); July 3 (V.I. Emancipation Day) – Danish West Indies Emancipation Day; July 4 (Independence Day); First Monday in September (Labor Day); Second Monday in October (Columbus Day and Puerto Rico Friendship Day); November 1 (D. Hamilton Jackson Day); Election Day as provided in 18 V.I.C. § 3; November 11 (Veterans Day); Fourth Thursday in November (Thanksgiving Day); December 25 (Christmas Day); December 26 (Christmas Second Day); and

It is further

ORDERED that Rule 7.1 of the Virgin Islands Rules of Civil Procedure **SHALL BE AMENDED** by striking and inserting language as follows:

Rule 7.1 Disclosure Statement

(a) Who Must File; Contents.

A nongovernmental corporate party or a nongovernmental corporation that seeks to intervene must file ~~two copies of~~ a disclosure statement that:

(1) identifies any parent corporation and any publicly held corporation owning 10% or more of its stock; or

(2) states that there is no such corporation.

(b) Time to File; Supplemental Filing.

A party, intervenor, or proposed intervenor must:

(1) file the disclosure statement with its first appearance, pleading, petition, motion, response, or other request addressed to the court; and

(2) promptly file a supplemental statement if any required information changes.

It is further

ORDERED that Rule 15(a)(1) of the Virgin Islands Rules of Civil Procedure **SHALL BE**

AMENDED by striking the word "within" and replacing it with the phrase "no later than". It is further

ORDERED that Rule 30(b)(5)(B) of the Virgin Islands Rules of Civil Procedure **SHALL BE AMENDED** by striking and inserting language as follows:

> **Notice or Subpoena Directed to an Organization**. In its notice or subpoena, a party may name as the deponent a public or private corporation, a partnership, an association, a governmental ~~body~~agency, or other entity and must describe with reasonable particularity the matters for examination. The named organization must then designate one or more officers, directors, or managing agents, or designate other persons who consent to testify on its behalf; and it may set out the matters on which each person designated will testify. Before or promptly after the notice or subpoena is served, the serving party and the organization must confer in good faith about the matters for examination. A subpoena must advise a nonparty organization of its duty to ~~make this designation~~confer with the serving party and to designate each person who will testify. The persons designated must testify about information known or reasonably available to the organization. This paragraph (6) does not preclude a deposition by any other procedure allowed by these rules.

It is further

ORDERED that Rule 90 of the Virgin Islands Rules of Civil Procedure **SHALL BE AMENDED** in the following instances:

1. In Rule 90(d)(3), by inserting the phrase "to the Court" after the word "Notice".

2. By designating the following new language as Rule 90(d)(3a):

> **Notice to Other Parties.** Each party shall disclose to all other parties at least five days prior to the mediation (i) the names of any individual party who will be attending the mediation, and (ii) the names and titles or positions of any representatives of a public body, corporation, or similar entity – including any insurer-representatives – who will be attending the mediation. Failure to provide this advance notice shall be subject to sanctions for lack of good faith participation in the mediation process under subpart (f) of this Rule.

3. In Rule 90(d)(5), by inserting the following new sentence at the conclusion of the existing language: "Mediation proceedings may be held by electronic meeting technology that provides a means for each participant to see and hear all other participants."

4. In Rule 90(e)(2)(D), by striking the existing language in its entirety and replacing it with the following new language: "Any applicable confidentiality provisions of the Virgin Islands Code, and the confidentiality provisions of subparts (d)(8) and (d)(9) of this Civil Rule 90;"

5. In Rule 90(f), by striking the existing language in its entirety and replacing it with the following new language:

(f) Authority Required for Attending Persons; Sanctions for Failure to Appear by Authorized Person or for Failure to Mediate in Good Faith.

(1) *Appearance by Properly Authorized Person or Representative*. Each party must appear at a duly noticed mediation conference by:

(A) The party personally, if an individual;

(B) An entity-party by a representative having full authority to settle without further consultation, or authority to make a final recommendation of settlement to the appropriate decision-making body of the entity; and

(C) for any insured party, a representative of each carrier (who is not such carrier's outside counsel) with full authority to settle without further consultation, or authority to make a final recommendation of settlement to the appropriate decision-making body of that carrier.

(2) *Failure to Appear or Mediate in Good Faith.* If a party, without good cause, fails to appear at a duly noticed mediation conference by a properly authorized person or representative, or if a party fails to participate in the mediation in good faith, the court shall impose sanctions on that party or its counsel, including an award of mediator fees and expenses as well as other parties' attorney's fees and other costs.

It is further

ORDERED that Rule 45(a)(4)(A) of the Virgin Islands Rules of Criminal Procedure **SHALL BE AMENDED** by inserting language as follows:

(A) the day set aside by statute for observing January 1 (New Year's Day) January 6 (Three King's Day); Third Monday in January (Martin Luther King, Jr.'s Birthday); Third Monday in February (Presidents Day); March 31 (Transfer Day); Holy Thursday; Good Friday; Easter Monday; Last Monday in May (Memorial Day); <u>June 19 (Juneteenth National Independence Day);</u> July 3 (V.I. Emancipation Day) – Danish West Indies Emancipation Day; July 4 (Independence Day); First Monday in September (Labor Day); Second Monday in October (Columbus Day and Puerto Rico Friendship Day); November 1 (D. Hamilton Jackson Day);

> Election Day as provided in 18 V.I.C. § 3; November 11 (Veterans Day); Fourth Thursday in November (Thanksgiving Day); December 25 (Christmas Day); December 26 (Christmas Second Day); and

It is further

ORDERED that Rule 47-1(b) of the Virgin Islands Rules of Civil Procedure **SHALL BE AMENDED** by inserting language as follows:

> After the conclusion of a trial, no attorney, party, or witness shall, directly or indirectly, communicate with or cause another to communicate with any member of the jury until the jury is discharged by the court, without first receiving permission from the court.

It is further

ORDERED that Rule 11 of the Virgin Islands Rules of Criminal Procedure **SHALL BE AMENDED** by inserting the following new language as Rule 11(b)(3), as well as inserting the following explanatory language in the Reporter's Note:

> *Determining the Factual Basis for a Plea*. Before entering the judgment on a guilty plea, the court must determine that there is a factual basis for the plea.

REPORTER'S NOTE

> The Advisory Committee on Rules of Court notes that pursuant to *Corraspe v. People*, 53 V.I. 470 (V.I. 2010), if judicial participation in discussions leading to the plea agreement is permitted by Rule – as it is under current V.I. Criminal Rule 11(c)(1) if the parties consent – such participation must be carefully scrutinized to ensure that it does not adversely affect the voluntariness of the defendant's plea, "because a judge's participation in plea discussions can have unintentional, but significant coercive effects on a defendant's decision to accept or reject a plea offer." *Id.* at 483. The Committee's recommendation that subpart (b)(3) of the Rule be added does not address judicial participation in the negotiation of a plea deal, and is not intended to alter principles set forth by Supreme Court in *Corraspe.*

It is further

ORDERED that Rule 106 of the Virgin Islands Rules of Evidence **SHALL BE AMENDED** by striking and inserting language as follows:

Rule 106. Remainder of or Related ~~Writings or Recorded~~ Statements.

If a party introduces all or part of a ~~writing or recorded~~ statement, an adverse party may require the introduction, at that time, of any other part—or any other ~~writing or recorded~~ statement—that in fairness ought to be considered at the same time. The adverse party may do so over a hearsay objection.

It is further

ORDERED that Rule 606(b)(2) of the Virgin Islands Rules of Evidence **SHALL BE AMENDED** by striking and inserting language as follows:

(2) *Exceptions*.

A juror may testify – and a juror's affidavit may be considered – about whether:

(A) extraneous prejudicial information was improperly brought to the jury's attention;

(B) an outside influence was improperly brought to bear on any juror; or

(C) a mistake was made in entering the verdict on the verdict form, or~~.~~

(D) during the trial a juror made one or more statements exhibiting overt racial/national origin bias – tending to show that a racial/national origin stereotype or animus was a significant motivating factor in the juror's vote and casting serious doubt on the fairness and impartiality of the jury's deliberations or the verdict.

It is further

ORDERED that Rule 615 of the Virgin Islands Rules of Evidence **SHALL BE AMENDED** by striking and inserting language as follows:

Rule 615. Excluding Witnesses from the Courtroom; Preventing an Excluded Witness's Access to Trial Testimony.

(a) Excluding Witnesses~~Exclusion and Right to Remain in the Coutroom.~~ At a party's request, the court must order prospective witnesses, including police officers and other investigators, excluded from the courtroom so that they cannot hear other witnesses' testimony. Or the court may do so on its own. But this rule does not authorize excluding:

(1) a party who is a natural person;

(2) ~~an~~ one officer or employee of a party that is not a natural person~~, after being~~ if that officer or employee has been designated as the party's representative by its attorney;

(3) ~~a~~ any person whose presence a party shows to be essential to presenting the party's claim or defense;

(4) a person authorized by statute to be present; or

(5) an attorney alleged in a habeas corpus proceeding to have acted

ineffectively.

(b) Expert Witnesses. An expert witness~~es~~ who will testify in the case shall not be excluded from the courtroom unless the court, in the exercise of its discretion, directs that the witness be excluded for part or all of the proceedings prior to the expert's testimony.

(c) Separation of Witnesses. The court may also order that each excluded witness be kept separate from all other witnesses.

(d) Additional Orders to Prevent Disclosing and Accessing Testimony. An order under (a) operates only to exclude witnesses from the courtroom. But the court may also, by order:

(1) prohibit disclosure of trial testimony to witnesses who are excluded from the courtroom; and

(2) prohibit excluded witnesses from accessing trial testimony.

It is further

ORDERED that Rule 702 of the Virgin Islands Rules of Evidence **SHALL BE AMENDED** by striking and inserting language as follows:

Rule 702. Testimony by Expert Witnesses.

A witness who is qualified as an expert by knowledge, skill, experience, training, or education may testify in the form of an opinion or otherwise if the proponent demonstrates to the court that it is more likely than not that:

(a) the expert's scientific, technical, or other specialized knowledge will help the trier of fact to understand the evidence or to determine a fact in issue;

(b) the testimony is based on sufficient facts or data;

(c) the testimony is the product of reliable principles and methods; and

(d) the ~~expert has reliably applied~~ expert's opinion reflects a reliable application of the principles and methods to the facts of the case.

It is further

ORDERED that Rule 16(b) of the Virgin Islands Rules of Appellate Procedure **SHALL BE AMENDED** by inserting language as follows:

Computation of Time. For purposes of proceedings in the Supreme Court, in computing any period of time prescribed or allowed by these Rules, by an order of the Court, or by any applicable statute, the day of the act, event, or default from which the designated period of time begins to run shall not be included. The last day of the period so computed shall be included, unless it is a Saturday, a Sunday,

> or a legal holiday, or, when the act to be done is the filing of a paper in court, a day on which 6 weather or other conditions have made the office of the Clerk of the Supreme Court inaccessible, in which event the period runs until the next day which is not one of the aforementioned excluded days. As used in this Rule, "legal holiday" refers to the holidays specified in 1 V.I.C. § 171 and includes only January 1 (New Year's Day), January 6 (Three King's Day), Third Monday in January (Martin Luther King, Jr.'s Birthday), Third Monday in February (Presidents Day), March 31 (Transfer Day), Holy Thursday, Good Friday, Easter Monday, Last Monday in May (Memorial Day), June 19 (Juneteenth National Independence Day), July 3 (V.I. Emancipation Day), July 4 (Independence Day), First Monday in September (Labor Day), Second Monday in October (Columbus Day and Puerto Rico Friendship Day), November 1 (D. Hamilton Jackson Day), November 11 (Veterans Day), Fourth Thursday in November (Thanksgiving Day), December 25 (Christmas Day), December 26 (Christmas Second Day) and such other days as the President, or the Governor may by proclamation declare to be holidays

It is further

ORDERED that Rule 7(a)(6) of the Virgin Islands Electronic Filing Rules **SHALL BE AMENDED** by striking and inserting language as follows:

> Proposed orders shall be filed and submitted electronically through the VIJEFS, using Document Type "Notice" and Subtype "Proposed Order." ~~Filers are strongly encouraged not to submit proposed orders in PDF format but to instead file them in an editable format capable of being read by Microsoft Word.~~ Proposed orders must be filed in Microsoft Word, or in an editable format capable of being read by Microsoft Word. Filing proposed orders in an un-editable or locked PDF format is not permitted.

It is further

ORDERED that the public and members of the local Bench and Bar **MAY SUBMIT WRITTEN COMMENTS** on these proposed amendment to the Clerk of the Court within thirty (30) days of entry of this order. It is further

ORDERED that these amendments **WILL TAKE EFFECT on September 1, 2023,** unless modified by further Order of this Court based on public comment. It is further

ORDERED that copies of this order be directed to the appropriate parties.

SO ORDERED this _14th_ day of July, 2023.

_/s/ Ive Arlington Swan_____
IVE ARLINGTON SWAN
Associate Justice

__/s/ Maria M. Cabret_____
MARIA M. CABRET
Associate Justice

___/s/ Rhys S. Hodge_____
RHYS S. HODGE
Chief Justice

ATTEST:

VERONICA J. HANDY, ESQ.
Clerk of the Court

By: /s/Kobe Potter_____
Deputy Clerk

Dated: **July 14, 2023_____**

Copies to:
Justices of the Supreme Court
Judges & Magistrate Judges of the Superior Court
Judges & Magistrate Judges of the District Court
Dwyer Arce, Esq., President, V.I. Bar Association
Hinda Carbon, Executive Director, V.I. Bar Association, *for distribution to V.I. Bar members*
Regina D. Petersen, Administrator of Courts
Veronica J. Handy, Esq., Clerk of the Supreme Court
Tamara Charles, Clerk of the Superior Court
Glenda L. Lake, Esq., Clerk of the District Court
Supreme Court Law Clerks
Supreme Court Secretaries
Order Book
Westlaw
Lexis/Michie